

ENTITLED: “AN ORDINANCE AMENDING THE CHEYENNE UNIFIED DEVELOPMENT CODE (UDC), AS APPROVED BY ORDINANCE NO. 3943 ON JANUARY 23, 2012, TO ADOPT AMENDMENTS IDENTIFIED AS HIGH PRIORITY QUICK FIXES FROM THE 2013 ANNUAL REVIEW.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That on December 5, 2011 the Cheyenne Planning Commission unanimously recommended approval of the “Cheyenne Unified Development Code”.

Section 2. That on January 23, 2012 the Governing Body of the City of Cheyenne unanimously approved the Unified Development Code (Ordinance No. 3943) with an effective date of April 30, 2012.

Section 3. That on February 19, 2013 the City of Cheyenne Planning Commission held a public hearing to satisfy the Unified Development Code Annual Review Requirement (ref. UDC 1.1.7)

Section 4. That on May 20, 2013 the Cheyenne Planning Commission recommended approval of the amendments, referred to collectively as High Priority Quick Fixes revisions 1 and 3-7 with revision number 2 postponed.

Section 5. That on June 17, 2013 the Cheyenne Planning Commission recommended approval of revision number 2 of High Priority Quick Fixes as amended.

Section 6. That UDC “Figure 4-18: Corner Site Distance (on-street parking)” is amended so the distance identified between the “Edge of Parking Lane” and “Curb” is changed from 10’ to 15’.

Section 7. That UDC Section 4.3.6c is amended by adding a new paragraph after the words “be designed as street intersections”; RESIDENTIAL LOT ACCESS WIDTH WITHIN THE LR-1, LR-2 MR-1 AND MR-2 ZONING DISTRICTS FOR DETACHED DWELLING AND SEMI-ATTACHED LOT TYPES SHALL BE LIMITED TO A MAXIMUM DRIVEWAY WIDTH OF UP TO 50% OF THE LOT FRONTAGE AND NOT MORE THAN 36’ WIDE AND A MINIMUM SEPARATION FROM SIDE LOT LINES GREATER THAN OR EQUAL TO THE SIDE BUILDING SETBACK AS AN ALTERNATIVE COMPLIANCE FOR ACCESS WIDTH STANDARDS DESCRIBED IN TABLE 4-13 WITH THE FOLLOWING EXCEPTIONS:

- LOTS ON CUL-DE-SACS WITHIN THE LR AND MR ZONING DISTRICTS ARE LIMITED TO 75% OF THE FRONT LOT LINE BUT NO MORE THAN 36’ WIDE AND THERE IS NO SIDE SETBACK REQUIREMENT
- DRIVEWAYS MAY BE CONSTRUCTED WITHIN THE SIDE SETBACK WHEN THE DRIVEWAY WIDTH IS A MAXIMUM OF 50% OF THE LOT FRONTAGE AND NOT MORE THAN 20-FEET WIDE. WHEN THIS EXCEPTION IS APPLIED TO DETACHED DWELLING LOT TYPES, THE GARAGE MUST EITHER BE FACING THE SIDE LOT LINE OR BE SETBACK 10’ BEHIND THE FRONT BUILDING LINE.

And that Note number 2 associated with “Table 4-13: Lot Access Width” is eliminated, ~~Width standards in Table 4-13 are optional in the LR-1, LR-2, MR-1, and MR-2 zoning districts. Any lot that does not elect to use these standards shall have a 10’–36’ access width, which shall be separated from the adjacent side lot line by a minimum of 10’.~~

Section 8. That UDC “Table 4-17: Minimum Pavement Sections” is amended so the row “Local” is changed from 32,850 to 320,850 under column ESAL and row “Residential Collector” is changed from 6.9 to 6.0 under column “Full Depth Asphalt (inches)”.

Section 9. That the following “Residential Building and Lot Types” identified in section 5.1.5a and b, Types DD5, DD6, DD7, DD8, SD1, SD2 and SD3 change the rear setback for the “Principal Building” from 25’ to 20’.

Section 10. That a citation reading “SOURCE: SMITH AND KNOBLAUCH, AAA TRANSPORTATION RESEARCH RECORD 1141 AS REPRINTED IN THE ITE MANUAL, DESIGN AND SAFETY OF PEDESTRIAN FACILITIES.” Added to UDC “Figure E-8: Guidelines for the Installation of Marked Crosswalks at Uncontrolled Intersections and Mid-block Crossings”

Section 11. That UDC “Table 1-1: Summary of Review Authority” is amended by adding checked boxes for the “Variance” row under columns “Pub.” And “Post”.

Section 12. That UDC “Table 5-1: Zoning District Uses” is amended changing “P” to “P/C” for row “Multi-dwelling Building (“Apartment”)” under columns NR-2 and NR-3.

Section 13. That this ordinance shall be in full force and effect upon its approval and publication

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____